

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ja'Quawn Turner	Team: Squad #04	CCRB Case #: 202300672	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 10/08/2022 10:20 PM, Saturday, 10/08/2022 10:21 PM, Saturday, 10/08/2022 10:21 PM, Saturday, 10/08/2022 10:32 PM	Location of Incident: Broadway and West 141 Street, West 142nd Street, and West 144th Street; 30th Precinct stationhouse	18 Mo. SOL 4/8/2024	Precinct: 30		
Date/Time CV Reported Thu, 01/12/2023 3:15 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 01/25/2023 10:55 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Eduardo Martinez	22514	969947	030 PCT
2. An officer			
3. SGT Carlos Barahona	04019	938023	PBMN SU PST
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Jennifer Ramirez	24851	970115	030 PCT
2. PO Luis Gutierrez	26754	968466	030 PCT
3. SGT SA Miguele Amoresano	00076	924884	030 PCT
4. LT Federico Vazquez	00000	937679	NARCB BX
5. DI Jonathan Korabel	00000	930498	047 PCT
6. PO Shane Bula	31601	964948	PSA 6
7. Matae Lee		968566	

Officer(s)	Allegation	Investigator Recommendation
A . Officers	Discourtesy: At Broadway and West 141st Street in Manhattan, officers spoke discourteously to individuals.	A . Unfounded
B . Officers	Force: At Broadway and West 141st Street in Manhattan, officers used physical force against individuals.	B . Unfounded
C . An officer	Abuse: At Broadway and West 141st Street in Manhattan, an officer drew their gun.	C . Unfounded
D . Officers	Abuse: At Broadway and West 141st Street in Manhattan, officers threatened § 87(2)(b) with the use of force.	D . Unfounded
E . Officers	Force: At Broadway and West 142nd Street in Manhattan, officers used physical force against § 87(2)(b)	E . Unfounded
F . An officer	Abuse: At Broadway and West 142nd Street in Manhattan, an officer improperly their body-worn camera.	F . Unfounded
G . Officers	Force: At Broadway and West 142nd Street in Manhattan, officers used physical force against § 87(2)(b)	G . Unfounded
H . PO Eduardo Martinez	Abuse: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez threatened § 87(2)(b) with the use of force.	H . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
I . PO Eduardo Martinez	Discourtesy: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez spoke discourteously to § 87(2)(b)	I . Unfounded
J . PO Eduardo Martinez	Off. Language: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez made offensive remarks to § 87(2)(b)	J . Unfounded
K . Officers	Force: At Broadway and West 142nd Street in Manhattan, Officers used physical force against § 87(2)(b)	K . Unfounded
L . Officers	Force: At Broadway and West 142nd Street in Manhattan, officers used a chokehold against § 87(2)(b)	L . Unfounded
M . Officers	Force: At Broadway and West 142nd Street in Manhattan, officers restricted § 87(2)(b) breathing.	M . Unfounded
N . PO Eduardo Martinez	Force: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez tightly handcuffed § 87(2)(b)	N . Unable to Determine
O . PO Eduardo Martinez	Discourtesy: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez spoke discourteously to § 87(2)(b)	O . Unfounded
P . PO Eduardo Martinez	Force: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez used physical force against § 87(2)(b)	P . Unfounded
Q . SGT Carlos Barahona	Abuse: At Broadway and West 144th Street in Manhattan, Sergeant Carlos Barahona threatened an individual with the use of force.	Q . Substantiated
R . SGT Carlos Barahona	Discourtesy: At Broadway and West 144th Street in Manhattan, Sergeant Carlos Barahona spoke discourteously to an individual.	R . Substantiated
S . SGT Carlos Barahona	Discourtesy: At the 30th Precinct stationhouse, Sergeant Carlos Barahona spoke discourteously to § 87(2)(b)	S . Substantiated
T . SGT Carlos Barahona	Off. Language: At the 30th Precinct stationhouse, Sergeant Carlos Barahona made offensive remarks to § 87(2)(b)	T . Substantiated
U . PO Eduardo Martinez	Abuse: At the 30th Precinct stationhouse, Police Officer Eduardo Martinez did not obtain medical treatment for § 87(2)(b)	U . Unable to Determine

Case Summary

On January 12, 2023, § 87(2)(b) filed this complaint with IAB over the phone on behalf of her son § 87(2)(b). The complaint was referred to the CCRB, via log no. § 87(2)(b) and was received on January 25, 2023.

On October 8, 2022, at approximately 10:19pm, officers from multiple commands responded to a call for a 10-13 (assist police officer) at Broadway and West 140th Street in Manhattan (**BR 01**). Police Officer Eduardo Martinez, Police Officer Matae Lee, Sergeant Miguele Amoresano, and additional officers from the 30th Precinct responded to the location. Sergeant Carlos Barahona from Patrol Borough Manhattan North Specialized Unit also responded to the location.

At Broadway and West 141st Street in Manhattan, officers told individuals, “Get the fuck out the block...Get the fuck out...You don’t have a fucking home,” “Everybody get the fuck home! Get the fuck off the block,” and “So you guys wanna play that game? We could play that fucking game!” (**Allegation A: Discourtesy, Unfounded**). Officers pushed into the crowd and grabbed people (**Allegation B: Force, Unfounded**). An officer had a gun out (**Allegation C: Abuse of Authority, Unfounded**). Officers pulled out tasers and waved it in § 87(2)(b) direction (**Allegation D: Abuse of Authority, Unfounded**). § 87(2)(b) and unidentified individuals ran away.

At Broadway and West 142nd Street in Manhattan, officers tackled § 87(2)(b) threw him to the ground, and jumped on him (**Allegation E: Force, Unfounded**). An unidentified officer covered his body-worn camera (**Allegation F: Abuse of Authority, Unfounded**). Officers punched § 87(2)(b) in the ribs and face and shoved his face into the sidewalk (**Allegation G: Force, Unfounded**)(**Allegation K: Force, Unfounded**). PO Martinez held a taser to § 87(2)(b) head and whispered, “This is what you get, little bitch. This is what you get. This is what you wanted? This what you wanted?” (**Allegation H: Abuse of Authority, Within NYPD Guidelines**)(**Allegation I: Discourtesy, Unfounded**)(**Allegation J: Offensive Language: Unfounded**). Officers placed § 87(2)(b) in a chokehold and placed knees on § 87(2)(b) back (**Allegation L: Force, Unfounded**). Officers restricted § 87(2)(b) breathing (**Allegation M: Force, Unfounded**). PO Martinez and PO Lee handcuffed § 87(2)(b) PO Martinez tightened the handcuffs on § 87(2)(b) (**Allegation N: Force, Unable to Determine**). PO Martinez told § 87(2)(b) to “shut the fuck up” (**Allegation O: Discourtesy, Unfounded**). PO Martinez shoved § 87(2)(b) into the back of the police vehicle (**Allegation P: Force, Unfounded**).

At Broadway and West 144th Street in Manhattan, while pursuing an unidentified individual, Sgt. Barahona said, “Alright, taser this motherfucker” and, “We ain’t playing games, son. This is real world. This is real world, motherfucker. You wanna okay games? This is real shit. This is the streets, homie (**Allegation Q: Abuse of Authority, Substantiated**)(**Allegation R: Discourtesy, Substantiated**). § 87(2)(b) and additional unidentified individuals were transported to the 30th Precinct stationhouse.

At the 30th Precinct stationhouse, Sgt. Barahona said to § 87(2)(b) “You better stop fucking moving. You better stop fucking moving. You’re in my house, bitch. You better stop fucking moving around. You don’t control this shit. We control this shit. Alright? Put around his arms because he’s fucking playing games. You wanna play games, we play games son. Telling us how to fucking run our shit” (**Allegation S: Discourtesy, Substantiated**)(**Allegation T: Offensive Language, Substantiated**). Police Officer Eduardo Martinez did not obtain medical treatment for § 87(2)(b) (**Allegation U: Abuse of Authority, Unable to Determine**).

§ 87(2)(b) was issued § 87(2)(b) for disorderly conduct (**BR 02**).

There are 41 BWC videos in relation to this investigation (BR 03).

Findings and Recommendations

Allegation (A) Discourtesy: At Broadway and West 141st Street in Manhattan, officers spoke discourteously to individuals.

Allegation (B) Force: At Broadway and West 141st Street in Manhattan, officers used physical force against individuals.

Allegation (C) Abuse of Authority: At Broadway and West 141st Street in Manhattan, an officer drew their gun.

Allegation (D) Abuse of Authority: At Broadway and West 141st Street in Manhattan, officers threatened § 87(2)(b) with the use of force.

§ 87(2)(b) stated that he and a group of twenty friends were about to shoot a music video. The group was stationed in front of a supermarket on Broadway between West 141st and West 142nd Streets. The group did not break any laws nor impede public safety. Approximately 7-8 police cars arrived and officers told the group to move out of the way. The group complied. The officers told the group to go home but the group said they did not have to leave. The officers continuing to tell them to move and “Get the fuck out the block...Get the fuck out...You don’t have a fucking home.” The group argued with the officers saying that they did not commit a crime and they could stay there. An officer yelled at the group, “Everybody get the fuck home! Get the fuck off the block!” The group responded, “no.” Officers pushed into the crowd and grabbed people. The group of officers thought they saw something fly from his group toward the officers. § 87(2)(b) could not identify what that item was. An officer said, “So you guys wanna play that game? We could play that fucking game! We are the bad guys over here! Alright! Alright!” Another officer asked the group who threw the item. One of the officers had a gun out. Three officers pulled out tasers and waved it in his direction (BR 04).

PO Martinez’s BWC recording (BR 05) shows he and his partner arrive at the incident location at the 02:02 time stamp. PO Martinez approaches the corner where there are multiple uniformed officers and a large crowd of individuals moving around the street and on the sidewalk. PO Martinez and officers tell the individuals to “back up.” At the 02:31 time stamp, PO Martinez approaches a group of teenagers and takes out his night stick and walks toward the group of teenagers. The group backs up while yelling obscenities. At 02:48, PO Martinez takes out a nightstick. At 02:51, PO Martinez runs. At 03:01, PO Martinez stops and approaches § 87(2)(b) who is on the ground.

There are forty-one BWC recordings related to this incident. None of the available video evidence captures officers speaking discourteously towards individuals, pushing individuals, drawing their firearms, or pointing Tasers towards individuals § 87(2)(g) it is recommended that **Allegations A, B, C and D** be closed as **Unfounded**.

Allegation (E) Force: At Broadway and West 142nd Street in Manhattan, officers used physical force against § 87(2)(b)

Allegation (F) Abuse of Authority: At Broadway and West 142nd Street in Manhattan, an officer improperly covered their body-worn camera.

Allegation (G) Force: At Broadway and West 142nd Street in Manhattan, officers used physical force against § 87(2)(b)

Allegation (H) Abuse of Authority: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez threatened § 87(2)(b) with the use of force.

Allegation (I) Discourtesy: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez spoke discourteously to § 87(2)(b)

Allegation (J) Offensive Language: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez made offensive remarks to § 87(2)(b)

Allegation (K) Force: At Broadway and West 142nd Street in Manhattan, Officers used physical force against § 87(2)(b)

Allegation (L) Force: At Broadway and West 142nd Street in Manhattan, officers used a chokehold against § 87(2)(b)

Allegation (M) Force: At Broadway and West 142nd Street in Manhattan, officers restricted § 87(2)(b) breathing.

Allegation (N) Force: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez tightly handcuffed § 87(2)(b)

Allegation (O) Discourtesy: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez spoke discourteously to § 87(2)(b)

Allegation (P) Force: At Broadway and West 142nd Street in Manhattan, Police Officer Eduardo Martinez used physical force against § 87(2)(b)

§ 87(2)(b) stated that he ran away and approximately twenty officers chased him. PO Lee tackled § 87(2)(b) and threw him to the ground. Seven officers jumped on § 87(2)(b). An unidentified officer covered his body-worn camera. An unidentified officer and PO Lee punched § 87(2)(b) in the ribs. PO Martinez held a taser to § 87(2)(b) head and whispered, “This is what you get, little bitch. This is what you get. This is what you wanted? This what you wanted?” § 87(2)(b) face was shoved onto the sidewalk, which caused scratches on his face. § 87(2)(b) was also punched in the face, but he did not recall which officer did this. Other officers were trying to grab his arms to place him under arrest. An unidentified officer had him in a “sleeper chokehold,” and would release and reply pressure repeatedly. Officers had knees on § 87(2)(b) back. § 87(2)(b) yelled several times that he could not breathe. All of this occurred within 4-5 minutes. PO Martinez picked § 87(2)(b) up from the ground. As he was being lifted, his elbows were pushed up by PO Martinez and PO Lee, causing him pain. § 87(2)(b) begged PO Martinez to stop. PO Martinez answered, “Oh, you want me to stop?” and tightened the handcuffs on § 87(2)(b). § 87(2)(b) told PO Martinez to loosen the handcuffs. PO Martinez told § 87(2)(b) to “shut the fuck up.” PO Martinez then threw § 87(2)(b) in the police vehicle by opening the door and shoving him from his back into the back of the police vehicle. § 87(2)(b) bled from his wrist and face (BR 04).

PO Martinez’s BWC recording shows (BR 05), that at the 03:02 time stamp, § 87(2)(b) is already on the ground upon PO Martinez’s approach and there is no other officer near § 87(2)(b). At 03:06, another uniformed officer approaches. At 03:09, two additional uniformed officers approach. At 03:15, § 87(2)(b) appears to be on his right side with his hands in front of his body and he is yelling, “It wasn’t me. I can’t breathe.” At 03:18, § 87(2)(b) sits on his buttocks. At 03:23, PO Martinez and PO Lee pull him up by his arms. PO Martinez and PO Lee hold onto § 87(2)(b) arms, which are at his sides and not cuffed. At 03:55, PO Lee handcuffs § 87(2)(b). At 04:13, a uniformed sergeant tells PO Martinez and PO Lee to put § 87(2)(b) in a car. From 04:19 to 05:10, PO Martinez and PO Lee walk § 87(2)(b) to a marked SUV. From 04:47 to 05:02, § 87(2)(b) complains that his wrists are in pain. PO Martinez and PO Lee do not respond. At 05:12, PO Martinez opens the marked SUV door. At 05:23, PO Martinez searches § 87(2)(b). At 05:47, PO Martinez tells § 87(2)(b) to “go inside” the marked SUV. § 87(2)(b) enters the marked SUV without incident. At 05:57, PO Martinez closes the door.

PO Lee’s BWC recording shows (BR 06), 1:05 to 1:18, running down the sidewalk towards PO Martinez and § 87(2)(b). At 01:16, § 87(2)(b) is lying on the ground on his right side. PO Martinez is standing by § 87(2)(b) feet with his Taser out. It is unclear where exactly the Taser is pointed but it appears to be pointed near § 87(2)(b) lower body. At 01:19, Sgt. Amoresano runs towards § 87(2)(b) and places the front of his body over § 87(2)(b) body. Officers hold

§ 87(2)(b) legs and arms against the ground while he is lying on his right side. At 01:26, officers grab § 87(2)(b) arms up and try to pull him up, but § 87(2)(b) sits. At 01:35, officers pull § 87(2)(b) arms up and § 87(2)(b) stands. Between 02:00 and 02:13, PO Lee and PO Martinez handcuff § 87(2)(b).

Sgt. Amoresano's BWC shows (BR 07), at the 05:23 time stamp, Sgt. Amoresano runs toward § 87(2)(b) and PO Martinez. Sgt. Amoresano goes to the ground and appears to place his body over § 87(2)(b) body and left shoulder from 05:33 to 05:37.

PO Martinez stated that (BR 08) thirty seconds to a minute after PO Martinez's arrival at the incident location, a cabbage was thrown from § 87(2)(b) direction and contacted the bottom of PO Martinez's leg. § 87(2)(b) was within a group of eight to ten youths. PO Martinez only felt the impact and did not see it while it traveled through the air nor witnessed § 87(2)(b) throwing the cabbage. § 87(2)(b) and other individuals ran away. PO Martinez and officers ran after § 87(2)(b). While giving chase, PO Martinez told § 87(2)(b) he would tase him to gain his compliance. PO Martinez had the taser in his hand facing down. § 87(2)(b) fell on his own at the intersection of West 142nd Street and Broadway. § 87(2)(b) fell forward with his hands on the ground, directly in front of PO Martinez. PO Martinez re-holstered the taser once § 87(2)(b) was on the ground. Other officers, including PO Lee and the patrol sergeant, were present. § 87(2)(b) resisted while on the ground by moving around, moving his hands and legs, and saying it was not him. PO Martinez did not use any force to obtain § 87(2)(b) compliance and denied shoving § 87(2)(b) face into the sidewalk. PO Martinez did not recall any of the officers putting a knee on § 87(2)(b). PO Lee placed handcuffs on § 87(2)(b) while PO Martinez and other officers held § 87(2)(b) arms (BR10).

Sgt. Amoresano stated that (BR 09), at some point while certain individuals were being arrested on the scene, a cabbage was thrown at the group of officers, which started a foot chase that Sgt. Amoresano joined. Sgt. Amoresano noticed an officer with § 87(2)(b) on the ground and stopped to assist. Sgt. Amoresano grabbed § 87(2)(b) hand and placed it behind his back. Sgt. Amoresano did not recall grabbing any other part of § 87(2)(b) body. Sgt. Amoresano did not recall ever pinning § 87(2)(b) on the ground. Sgt. Amoresano did not shove § 87(2)(b) face into the ground.

PO Lee resigned from the NYPD on June 13, 2023, and was not interviewed (BR 10).

PO Martinez issued § 87(2)(b) § 87(2)(b) for disorderly conduct. The narrative notes: "AT TPO UNDERSIGNED OBSERVED THE DEFENDANT ON A PUBLIC SIDEWALK AND WITH INTENT TO CAUSE A DISRUPTION GATHERED WITH 2 OTHERS. WHEN ORDERED TO DISPERSE BY PD DEFT REFUSED AND REMANDED" (BR 02).

According to Patrol Guide procedure 221-08 (BR 11), "A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. It is prohibited to use a CEW in situations that do not require the use of physical force."

BWC footage shows PO Martinez pointing a Taser at § 87(2)(b) when PO Martinez first caught up with § 87(2)(b) was lying on the ground and on his back. PO Martinez is shown holstering his Taser when additional officers approach to assist shortly thereafter. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation H** be closed as **Within NYPD Guidelines**.

BWC footage shows that officers did not cover their BWC cameras and did not tackle § 87(2)(b) to the ground, jump on § 87(2)(b) back, place knees on § 87(2)(b) back, punch § 87(2)(b) anywhere on his body, shove § 87(2)(b) face into the sidewalk, use a chokehold on § 87(2)(b) restrict his breathing, or shove him into a police vehicle. BWC footage also confirms that officers did not make the alleged discourteous or offensive statements. Therefore, it is recommended that **Allegations E, F, G, I, J, K, L, M, O, and P** be closed as **Unfounded**.

§ 87(2)(g) it is recommended that **Allegation N** be closed as **Unable to Determine**.

Allegation (Q) Abuse of Authority: At Broadway and West 144th Street in Manhattan, Sergeant Carlos Barahona threatened individuals with the use of force.
Allegation (R) Discourtesy: At Broadway and West 144th Street in Manhattan, Sergeant Carlos Barahona spoke discourteously to individuals.

These allegations were pleaded because they were captured on BWC footage.

Sgt. Barahona's BWC recording shows, at the 00:55 time stamp, officers running after individuals. Officers tackle the individual to the ground and keep him face down. At least three officers hold the individual's arms behind his back. At 01:15, while Sgt. Barahona is placing handcuffs on an individual, Sgt. Barahona says, "Alright, taser this motherfucker." After the individual is handcuffed, at 2:20, Sgt. Barahona continues, "We ain't playing games, son. This is real world. This is real world, motherfucker. You wanna okay games? This is real shit. This is the streets, homie (BR 12).

Sgt. Barahona stated that he arrived and observed officers chasing individuals. Officers drove ahead and cut off the individual. Both officers stopped the individual and attempted to place him under arrest. The individual resisted by not giving the officers his hands. The officers had to gain compliance from the individual and Sgt. Barahona did so by using profanity. Sgt. Barahona did not independently recall what he said as the incident was over a year ago. Sgt. Barahona admitted to making a comment about using a taser shortly after the officers gained compliance from the individual. Sgt. Barahona unholstered his taser, but he did not use it. Sgt. Barahona apologized and stated that he used a poor choice of words and apologized (BR 13).

According to Patrol Guide procedure 221-08 (BR 11), "A CEW should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present. It will often reduce the potential for injuries to members and suspects that may result from physical restraint and should be regarded as a possible alternative to such force and restraint, where practical. It is prohibited to use a CEW in situations that do not require the use of physical force."

According to Patrol Guide procedure 221-01, "Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life." (BR 14)

According to Patrol Guide procedure 200-02 (BR 15), the NYPD is committed to: "maintain a higher standard of integrity than is generally expected of others because so much is expected of us"

and “Value human life, respect the dignity of each individual and render our services with courtesy and civility.”

BWC footage shows that officers had already subdued the individual when Sgt. Barahona stated, “Alright, tase this motherfucker.” The individual was lying face down on the ground and with his arms behind his back being handcuffed. § 87(2)(g)

Therefore, it is recommended that Allegations Q and R be closed as substantiated.

Allegation (S) Discourtesy: At the 30th Precinct stationhouse, Sergeant Carlos Barahona spoke discourteously to § 87(2)(b)

Allegation (T) Offensive Language: At the 30th Precinct stationhouse, Sergeant Carlos Barahona made offensive remarks to § 87(2)(b)

These allegations were pleaded because they were captured on BWC footage.

§ 87(2)(b) was taken to the 30th Precinct stationhouse. § 87(2)(b) spoke to Sgt. Barahona, trying to proclaim his innocence. Sgt. Barahona yelled at § 87(2)(b) did not allege that Sgt. Barahona used profanity towards him (BR 04).

Sgt. Barahona’s second BWC shows Sgt. Barahona standing behind a desk in the stationhouse. At the 06:14 time stamp, Sgt. Barahona tells § 87(2)(b) “You wanna play games, we can play games right now, bruh.” From the 06:15 time stamp to the 06:39 timestamp, Sgt. Barahona continues, “You better stop fucking moving. You better stop fucking moving. You’re in my house, bitch. You better stop fucking moving around. You don’t control this shit. We control this shit. Alright? Put around his arms because he’s fucking playing games. You wanna play games, we play games son. Telling us how to fucking run our shit.” (BR 16)

Sgt. Barahona stated that § 87(2)(b) was being verbally combative and aggressive with some officers as he was being processed. § 87(2)(b) was standing in front of the desk along with approximately three other individuals who were also being processed. § 87(2)(b) was pacing back and forth, resisting, and pulling away from officers. Sgt. Barahona felt that § 87(2)(b) was a flight risk and ordered an officer to put leg shackles on § 87(2)(b). Sgt. Barahona did not independently recall the conversation that occurred between him and § 87(2)(b). After being shown his BWC recording, Sgt. Barahona stated that he spoke to § 87(2)(b) that way to try and gain § 87(2)(b) compliance. Sgt. Barahona “spoke down at his level,” and admitted that it was a tactic that did not work. When asked specifically about him referring to § 87(2)(b) as a “bitch,” Sgt. Barahona stated that § 87(2)(b) was attempting to tell officers how to do their job but that using the term was another poor choice of words (BR 13).

According to Patrol Guide procedure 200-02 (BR 15), the NYPD is committed to: “maintain a higher standard of integrity than is generally expected of others because so much is expected of us” and “Value human life, respect the dignity of each individual and render our services with courtesy and civility.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) it is recommended that Allegations S and T be closed as Substantiated.

Allegation (U) Abuse of Authority: At the 30th Precinct stationhouse, Police Officer Eduardo Martinez did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) stated that he asked for medical help, but PO Martinez laughed at § 87(2)(b) and did not provide him with medical attention (BR 04).

PO Martinez stated that § 87(2)(b) did not request medical assistance (BR 08).

PO Lee resigned from the NYPD on June 13, 2023, and was not interviewed (BR 10).

PO Martinez's BWC recording shows (BR 05, at 11:25, PO Martinez, PO Lee, § 87(2)(b) and other unidentified individuals standing in front of the front desk in the 30th Precinct stationhouse. PO Martinez places his BWC on the desk to face § 87(2)(b). PO Lee also places his BWC on the desk. At 14:40, § 87(2)(b) provides his pedigree information to PO Martinez. There are multiple officers and two other handcuffed individuals in the area, so the conversation is not entirely decipherable. At 18:16, § 87(2)(b) asks for a band-aid. At 19:19, PO Martinez and another officer escort § 87(2)(b) further into the stationhouse.

PO Martinez prepared TRI TACT report no. § 87(2)(b) regarding § 87(2)(b) (BR 17). Medical attention was offered and refused by § 87(2)(b). Type of force used by MOS is listed as "N/A." Reason for force is listed as "Fleeing Suspect." The type of injury sustained by civilian/subject is listed as "minor lacerations/abrasion." The injury was "unintentional self-inflicted."

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that Allegation U be closed as Unable to Determine.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 18).
- PO Eduardo Martinez has been a member of service for three years and has been a subject in five CCRB complaints and 11 allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Carlos Barahona has been a member of service for 18 years and has been a subject in seven CCRB complaints and 23 allegations, of which two were substantiated (BR 20):
 - Case no. 202203612 involved two substantiated allegations of Abuse of Authority (Failure to provide RTKA card) against Sgt. Barahona. The Board recommended and the NYPD imposed Command Discipline B. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- On January 19, 2024, a request for a Notice of Claim filed regarding this incident was sent to the New York City Office of the Comptroller. The results will be added upon receipt (BR 21).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 4

Investigator:	<u>Inv. JaQuawn Turner</u>	<u>Inv. JaQuawn Turner</u>	<u>1/24/2024</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Raquel Velasquez</u>	<u>IM Raquel Velasquez</u>	<u>01/24/2024</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date